

File number: DOS-2022-01885

Subject: Complaint regarding the exercise of a right of access to documents exchanged in the context of mediation before an Ombudsman

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Romain Robert and Dirk Van Der Kelen, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

X, hereinafter referred to as "the complainant";

The defendant: ASBL Ombudsman Service for Insurance, with its registered office at 1000 Brussels, Square de Meeûs, 35, and registered in the Crossroads Bank for Enterprises (CBE) under number 0884.072.054,

Hereinafter referred to as "the defendant".

1 The new internal regulations of the DPA, resulting from the amendments made by the Law of December 25, 2023, amending the Law of December 3, 2017, establishing the Data Protection Authority (LCA), came into force on 01/06/2024. In accordance with Article 56 of the Law of December 25, 2023, it applies only to complaints, mediation files, requests, inspections, and procedures before the Contentious Chamber initiated from that date: <https://www.autoriteprotectiondonnees.be/publications/reglement-d-ordre-interieur-de-lautorite-de-protection-des-donnees.pdf> Files initiated before 01/06/2024, as in this case, are subject to the provisions of the LCA not amended by the Law of December 25, 2023, and the internal regulations as they existed before that date.

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I. Facts and Procedure

1.

On April 12, 2022, the complainant filed a complaint with the Data Protection Authority (DPA) against the defendant.

2.

The defendant is an "independent and impartial qualified entity" defined in Title 4 of the Insurance Law of April 4, 2014, introduced in Book XVI "Extrajudicial Settlement of Consumer Disputes" of the Economic Law Code. It is subject as such to the rules set forth therein (see below). These rules partly result from the transposition into Belgian law of Directive 2013/11/EU of May 21, 2013, on the extrajudicial settlement of consumer disputes and amending Regulation (EC) No. 2006/2004 and Directive 2009/22/EC.

3.

The competencies of the defendant are described in Article 322 of the Insurance Law of April 4, 2014, as follows:

“§ 1. An extrajudicial complaint handling system is established to contribute to resolving disputes between, on the one hand, insurance companies and insurance intermediaries and ancillary insurance intermediaries, and on the other hand, their clients, by issuing an opinion or intervening as a mediator. This insurance ombudsman service must take the form of a legal entity.

§ 2. The ombudsman service has the following missions:

1° to examine all complaints from policyholders, insured parties, beneficiaries, and third parties with an interest in the execution of the insurance contract, concerning:

- the activities of insurance companies falling within the scope of this law or the law of March 13, 2016, including insurance companies from the EEA that have an establishment in Belgium and/or carry out insurance activities there, for contracts governed by Belgian law, and/or concerning

- the activities of insurance intermediaries and ancillary insurance intermediaries falling within the scope of this law, including insurance intermediaries and ancillary insurance intermediaries whose member state of origin is another member state of

2 <https://eur-lex.europa.eu/LexUriServ/LexUriServ.do?uri=OJ:L:2013:165:0063:0079:FR:PDF>

3 The defendant was established by Royal Decree of June 21, 2006. It was approved by ministerial decree of November 17, 2006 (M.B., November 27, 2006).

4 It is the Contentious Chamber that emphasizes this.

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the EEE and operating in Belgium, for acts governed by provisions of general interest applicable to them and propose a solution;

2° to mediate to facilitate the amicable resolution of disputes that are the subject of a complaint as referred to in 1°, it being understood that the powers conferred by Articles 58, 8° and 9°, 64bis and 64ter of the law of April 10, 1971, on occupational accidents, to the Occupational Accidents Fund regarding mediation, compensation control, and social assistance to victims are not prejudiced;

3° (...)

4.

The subject of the complaint concerns the exercise by the complainant of his right of access (Article 15 of the GDPR) with respect to the defendant. The complainant denounces the lack of follow-up to his request to receive copies of certain documents exchanged between the defendant and his insurance company in the context of a mediation he initiated, the defendant wrongfully invoking the confidentiality obligation to which it is legally bound in the exercise of its mediation competence to deny him this access, responding to him late moreover.

5.

It appears from the documents submitted to the Litigation Chamber that by email dated November 24, 2021, the complainant addresses his insurance company, copying the defendant on his message.

6.

On November 25, 2021, the defendant informs the complainant that it notes that it is copied on the aforementioned message (point 5) and advises him to wait for the reaction of his insurance company that he is challenging. The defendant further adds that if a disagreement should arise or if the complainant does not receive a response from his insurance company within a month, he can contact her again, describing the situation and attaching all relevant references. The defendant indicates that she nonetheless registers the complainant's email under number 2021/YYYY.

7.

It also appears from the case file that on November 30, 2021, the complainant addresses his insurance company again, asking it to "provide 2 elements that must serve my request for conciliation before the justice of the peace of [...] with your SME (read the insurance company)." The complainant adds, "in order to best prepare for this meeting with the Justice of the Peace, could you provide me with the 2 written documents where you mention my personal data." The APD is also a recipient of this email, in which the complainant specifies for its attention that it is an informative email in the file DOS-201X-XXXXX, which is already pending before the APD in which the complainant directly challenges his insurance company. The Litigation Chamber notes that the defendant is also a recipient of this email.

8.

On January 5, 2022, the complainant sends an email to the defendant's services (including to its Data Protection Officer - DPO).

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In this email, the complainant denounces the lack of response from his insurance company to his

request for 2 documents from November 2021 (see above points 6 and 7). He asks the defendant to insist with his insurance company that it respond to his requests.

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The complainant also directly requests the defendant to "provide copies of the exchanged letters, containing my (read "his") personal data, with this company from 2019 to 2021." He adds that he wishes to share his dispute with the political world, with the media, and with the legislator.

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The complainant copies the request he previously addressed to the defendant and his insurance company on November 30, 2021 (as mentioned in point 7 above).

9.

This email of January 5, 2022, is also sent to 5 email addresses of his insurance company to which the complainant reiterates his request for communication of the 2 aforementioned documents containing personal data concerning him, as well as to the email address of the Litigation Chamber (litigationchamber@apd-gba.be) in the context of the aforementioned DOS-201X-XXXXX.

10.

On January 29, 2022, the complainant sends a reminder to the defendant highlighting its lack of response to his requests of November 30, 2021 (point 7) and January 5, 2022 (point 8). The complainant reiterates his request to provide him with "copies of the exchanged letters, containing my (read "his") personal data, with insurance company X (read his insurance company) from 2019 to 2022." The Litigation Chamber is also a recipient of this email (with reference to DOS-201X-XXXXX) without the content being specifically addressed to it.

11.

By email dated February 17, 2022, addressed this time only to the defendant, the complainant indicates that having not received the previously requested copy, the defendant is in violation of the GDPR regarding his requests of January 5, 2022 (point 8). The complainant also threatens to refer the matter to the APD.

6 The complainant indeed modifies his request. On January 5, 2022, he mentions the period from 2019 to 2021, and on January 22, 2022, he extends it to 2022. It is this latter period that the Litigation Chamber takes into account in the continuation of its decision.

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12.

As already mentioned in point 1, the complainant filed a complaint with the APD on April 12, 2022.

13.

In the complaint form submitted against the defendant, the complainant states the following:

"Since [...] 2019, I have had problems with the insurance company X [i.e., my insurance company]. You have already recorded a complaint regarding this matter, and my case will be presented to your president soon [see DOS-201X-XXXXX]. Here, I request a copy of all documents where the exchange of data concerning me has been transmitted between the insurance company X [i.e., my insurance company] and the Insurance Ombudsman [i.e., the defendant]. The latter has not responded to my requests made by email and by phone. This is urgent as it pertains to a request with the justice of the peace in my municipality (...)"7.

14.

In the letter accompanying his complaint form, the complainant requests that his data not be deleted by the defendant. He adds, as in the submitted form, that this complaint against the defendant is related to the one already pending at the APD under reference number DOS-201X-XXXXX, which directly involves his insurance company.

15.

Finally, the complainant copies the defendant on the accompanying email and the complaint submitted.

16.

On April 14, 2022, the defendant informs the complainant that in response to his request of November 25, 2021 (point 6), she is sending him a summary of the personal data concerning him that she

processes and that she is, from her perspective, legally authorized to communicate to him. This summary includes:

- on the one hand, the name, first name, and contact email address of the complainant;
 - on the other hand, a table summarizing the following information regarding the files opened in the name of the complainant with her services: the year of said files (from 2018 to 2021), the number assigned to these files by the defendant, the company/intermediary involved, as well as the result obtained, namely, according to the terms of the defendant "1st line, founded, amicable solution or the mention that the competence falls to others."
- Furthermore, the defendant adds "that regarding the exchanges, we cannot provide them as they are confidential"⁸. The defendant specifies that she can, however, provide the complainant with a copy (digital) of the responses she has sent him if that is his wish. The Contentious Chamber notes that among the 7 identified files, there is file 2021/YYYY (defendant's ref.) regarding which the complainant requests a copy of the exchanges that occurred between his insurance company and the defendant.
- 17.

On the same April 14, 2022, the complainant writes in a response email addressed to both the defendant and the Contentious Chamber that he questions the compliance with the GDPR of the defendant's refusal. In addition to the grievance stemming from the lack of response received to his request for a copy within the timeframe prescribed by the GDPR, he adds to his complaint the grievance of the undue denial of his right of access (copy).

18.

On April 28, 2022, the complaint is declared admissible by the First Line Service (SPL) of the APD based on Articles 58 and 60 of the LCA and forwarded to the Contentious Chamber under Article 62, § 1 of the LCA.

19.

On October 11, 2022, the parties concerned are informed by registered mail of the provisions as set out in Article 95, § 2 as well as Article 98 of the LCA. They are also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions regarding potential breaches of Articles 12, 13, 14, 15, and 24 of the GDPR on the part of the defendant. The deadline for receiving the defendant's response conclusions is set for November 23, 2022, the deadline for the complainant's reply conclusions is set for December 15, 2022, and the deadline for the defendant's reply conclusions is set for January 6, 2023.

20. On November 23, 2022, the Contentious Chamber receives the defendant's response conclusions in which she also agrees to receive all communications related to the case electronically.

21.

The defendant denies any breach of the GDPR on her part.

- Regarding the actual response provided to the complainant on April 14, 2022, the defendant indicates that she transmitted the data she was authorized to communicate to the complainant, all other data being covered by the confidentiality seal applicable to all exchanges between her and the insurance company involved by the complainant (this, in the same manner as the exchanges that occur between the consumer himself – here the complainant – and the defendant, except for the transmission of the complaint), in execution of Article XVI. 25, 12° of the Code of Economic Law, as explained by the preparatory works and also included in Article 11 of her procedural rules (see below).

- Regarding the delay in responding to the email of November 24, 2021, from the complainant of which she was copied, the defendant explains that this email was

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addressed to various recipients including the complainant's insurance company.

The defendant explicitly states that it often happens that a consumer copies them on an email directed to their insurer to exert some pressure in the case. The defendant then takes a waiting position as it did in this instance in its immediate response of November 25, 2021 (point 6).

22.

On December 9, 2022, the Dispute Chamber receives the complainant's reply conclusions.

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In these, the complainant requests that the exchanges the defendant may have had with its insurance company in the exercise of its mission be preserved until the decision of the Dispute Chamber.

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The complainant believes that the arguments raised by the defendant are, in the hierarchy of norms, inferior to the GDPR. He concludes that the defendant has failed to meet the obligations arising from the GDPR regarding his right of access and the response he should have received within one month from the date of his request.

23.

On January 6, 2023, the Dispute Chamber receives the reply conclusions of the defendant which complement its response conclusions (points 20-21).

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In response to the argument of the hierarchy of norms raised by the complainant in his reply conclusions (point 22), the defendant cites Article 14.5.d) of the GDPR, which states that the data controller is, in the case of indirect collection, exempt from providing the information listed in Article 14.1 of the GDPR.

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The defendant more generally indicates that the purpose of the GDPR cannot be to allow one party to obtain information, remarks, and opinions entrusted by the other party to a mediator in the context of a mediation, nor to access the mediator's personal notes.

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Finally, the defendant adds that notwithstanding the deletion of files retained by its services after 3 years, it will retain the files submitted by the complainant since 2019 until the end of the dispute between them.

9 Article 14.5.d) of the GDPR: Paragraphs 1 to 4 do not apply when and to the extent that: (d) when "the personal data must remain confidential under a professional secrecy obligation regulated by Union law or the law of the Member States, including a legal obligation of professional secrecy."

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II. Motivation

II.1. Regarding the refusal by the defendant to exercise the complainant's right of access (Article 15 of the GDPR)

II.1.1. Parties' Views

Complainant's Position

24.

It follows from the preceding paragraphs that the complainant believes he has, under the GDPR, the right to a copy of the exchanges that took place between his insurance company and the defendant between 2019 and 2022. He specifies several times, both to his insurance company, to the defendant, and to the Dispute Chamber — whether in the emails sent (point 8) or in the complaint form submitted (point 13) — that he intends to share his dispute with the political world and the media and that he needs these documents in the context of a procedure before the peace judge. He adds that his access request is related to the complaint, distinct from the one leading to this decision, which was filed directly against his insurance company at the APD under reference DOS-201X-XXXXX.

25.

The complainant believes that the refusal communicated to him by the defendant on April 14, 2022, is contrary to the GDPR. He particularly objects that the reason based on the legal obligation of confidentiality invoked by the defendant — namely Article XVI. 25, 12° of the Economic Law Code (see below) — is contrary to the hierarchy of norms which places the GDPR above the legal provision invoked by the defendant.

Defendant's Position

26.

The defendant justifies the refusal it opposed to the complainant's request based on the obligation it has to "ensure the confidentiality of the information communicated by the parties" as formulated in Article XVI. 25, 12° of the Economic Law Code and reiterated in Article 11 of its procedural rules. The defendant emphasizes that this confidentiality obligation is at the heart of the mediation mission legally entrusted to it under Article 322 of the Law of April 4, 2014 (point 3). To facilitate negotiations and maintain an open and serene debate, the correspondence addressed to it is confidential. The confidentiality it is required to guarantee thus prevents any communication on its part of the information provided by the parties for purposes other than those of mediation. The defendant adds that it is up to the parties to decide which documents they produce in the context of a judicial procedure. The fact that in its capacity as ombudsman it can consult all the case files to verify whether an amicable settlement is possible does not mean that the insurer (in this case, the complainant's insurance company) is willing to communicate them to the insured (in this case, the complainant) and that this...

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last may use them in court. The defendant is not authorized to communicate to the plaintiff the data transmitted by her insurance company without the latter's consent. However, the plaintiff may contact the latter directly. The defendant adds that on April 14, 2022, she communicated to the plaintiff the personal data concerning him in her possession that she believed she was authorized to transmit (point 16).

27.

Regarding the plaintiff's argument based on the respect due to the hierarchy of norms, the defendant invokes Article 14.5.d) of the GDPR, which she claims provides an exception for the right of access to personal data that has not been collected directly from the data subject when such data must remain confidential due to a legal obligation of secrecy.

II.1.2. Assessment of the Litigation Chamber

Qualification and reminder of principles

28.

The Litigation Chamber establishes that the defendant is responsible for processing the personal data communicated to her by either party who, like the plaintiff, requests her intervention in her capacity as ombudsman, or who, like the plaintiff's insurance company, is invited to express its views when implicated.

29.

Thus, the defendant is responsible for processing the personal data relating to the plaintiff that would have been communicated to her by the insurance company in the context of her mediation request and that she would have retained, as well as more broadly, for any personal data concerning him processed in the context of her intervention (including those that she would have herself communicated to the insurance company in the exercise of her mission). It follows from the mission entrusted to the defendant by the legislator under Article 322 of the Insurance Law of April 4, 2014, that she is the data controller within the meaning of Article 4.7. of the GDPR. Indeed, this status—which is attributed to the person who determines the purposes and means of processing—can arise from the law that specifically designates them or result, as in this case, from the assignment of a public interest mission.

30. The GDPR defines personal data as "any information relating to an identified or identifiable natural person," and it is undisputed that documents

10 The Litigation Chamber also notes that by communicating data relating to the plaintiff or by retaining them, the defendant processes personal data relating to the plaintiff within the meaning of Article 4.2. of the GDPR, which includes the collection as well as the communication or retention of personal data under processing.

11 European Data Protection Board (EDPB), Guidelines 07/2020 on the concepts of controller and processor in the GDPR, July 7, 2021, points 22-24: https://www.edpb.europa.eu/system/files/2023-10/edpb_guidelines_202007_controllerprocessor_final_fr.pdf

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Exchanged between third parties and the person concerned may contain personal data regarding the latter. Thus, the documents exchanged between the complainant's insurance company and the defendant in the context of the latter's mediation request, and requested by the complainant, likely contain "information relating to the complainant" that identifies them directly or indirectly within the meaning of Article 4.1 of the GDPR. The Contentious Chamber notes that the defendant does not contest that this is the case (see its response of April 14, 2022 – point 16 of this decision and the content of its conclusions).

31.

The Contentious Chamber also notes that the request made by the complainant, aiming, in their words, to obtain a "copy of the exchanged correspondence, containing my (read "his") personal data, with insurance company X (read their insurance company) from 2019 to 2022," must be qualified as a request for access within the meaning of Article 15 of the GDPR, with the complainant specifically seeking to obtain a copy of their personal data as defined in Article 15.3 of the GDPR (see below).

32.

The Contentious Chamber observes that the complainant's request concerns correspondence exchanged in the context of the mediation conducted by the defendant. This mediation procedure is regulated as the Contentious Chamber will detail below, including aspects related to the "exchanged information" which may include personal data within the meaning of Article 4.1 of the GDPR (see point 31 above). However, as soon as the request falls within the scope of the GDPR as in this case, the existence of such specific regulation does not take precedence over the general application of the right of access, as provided by the GDPR. Restrictions on this right may nonetheless be provided for by Union law or national law, where Article 23 of the GDPR allows it (see below).

33. The GDPR does not introduce any formal requirement for individuals requesting access to data concerning them. To submit a request for access, it is sufficient for the applicants to specify that they wish to know the personal data concerning them processed by the data controller. Consequently, the data controller cannot refuse to respond to a request by referring to the absence of indication of the legal basis for the request, particularly the absence of specific reference to the right of access or the GDPR. In this case, the complainant explicitly refers to their personal data.

12 See above. While the complainant initially mentions the period from 2019 to 2021, they subsequently extend it to 2022.

13 This is the terminology used in Article XVI. 25, 12° of the Code of Economic Law.

14 European Data Protection Board (EDPB), Guidelines 01/2022 of March 28, 2023 on the rights of data subjects — Right of access: https://www.edpb.europa.eu/system/files/2024-04/edpb_guidelines_202201_data_subject_rights_access_v2_fr.pdf, point 49.

15 Ibid, point 50.

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34. In its capacity as the designated data controller under the law, the defendant is required, in the exercise of its assigned missions, to respect the principles of data protection and must be able to demonstrate that these principles are upheld. It must also implement all necessary measures to this end, in accordance with the principle of accountability¹⁶.

35. One of its obligations consists of responding to requests from data subjects exercising their rights, including the right of access enshrined in Article 15 of the GDPR invoked in this case. As for the complainant, it was his responsibility to address the defendant in its capacity as the data controller of the personal data concerning him that he presumed to be in its possession.

36. According to Article 15.1 of the GDPR, the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning him or her is being processed (1st aspect of the right of access).

37. When this is the case, the data subject has the right to obtain a series of information listed in Article 15.1 a) - h) and 15.2 of the GDPR relating to the processed data as well as access to that data (2nd aspect of the right of access)¹⁷.

38. The GDPR provides in Article 15.3 that the data controller shall provide a copy of the personal data to the data subject. This obtaining of a copy is the primary modality of granting access to the

processed data. In a judgment C-487/21 of May 4, 2023, the Court of Justice of the European Union (CJEU) held that Article 15.3 of the GDPR must be interpreted as meaning that "the right to obtain from the data controller a copy of the personal data undergoing processing implies that a faithful and intelligible reproduction of all such data is provided to the data subject. This right implies the right to obtain copies of extracts from documents or even entire documents or extracts from databases that contain, among other things, the said data, if the provision of such a copy is essential to enable the data subject to effectively exercise the rights.

16 Articles 5.2 and 24 of the GDPR.

17 These include: a) the purposes of the processing; b) the categories of personal data concerned; c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients established in third countries or international organizations; d) where possible, the envisaged duration of the retention of the personal data or, when that is not possible, the criteria used to determine that duration; e) the existence of the right to request from the data controller the rectification or erasure of personal data, or a restriction of processing of personal data concerning the data subject, or the right to object to such processing; f) the right to lodge a complaint with a supervisory authority; g) where the personal data are not collected from the data subject, any available information as to their source; h) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, useful information regarding the underlying logic, as well as the significance and the anticipated consequences of such processing for the data subject. According to Article 15.2 of the GDPR, the data subject also has the right to be informed of the appropriate safeguards under Article 46 in the event of the transfer of his or her data to a third country outside the European Economic Area (EEA) or to an international organization.

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which are conferred upon it by this regulation, it being emphasized that account must be taken, in this regard,

of the rights and freedoms of others.¹⁸

39. The Dispute Chamber recalls that the right of access is one of the pillars of the right to data protection. Following the right to information, which generally informs data subjects about the data processing carried out by the data controller (Articles 13 and 14 of the GDPR), the right of access constitutes a "gateway" that enables the exercise of other rights that the GDPR confers upon the data subject concerning the data processed about them specifically, such as the right to rectification (Article 16 of the GDPR) or the right to erasure (Article 17 of the GDPR). However, the right of access is not conditioned by a reason that the applicant must invoke to exercise their right. In other words, the data subject does not have to justify why they are requesting access to their personal data.²⁰

40. Like other rights provided for by the GDPR, the right of access is, however, not an absolute right. It must be balanced against other rights or other general interest objectives.

41. Thus, Article 15.4 of the GDPR provides that the right to obtain a copy (Article 15.3 of the GDPR) must not adversely affect the rights and freedoms of others.

42. This limitation is explained in the fifth and sixth sentences of Recital 63 of the GDPR: "this right should not adversely affect the rights or freedoms of others, including business secrecy or intellectual property, in particular the copyright protecting software." In the Guidelines it dedicated to the right of access, the European Data Protection Board (EDPB) specifies that these rights and freedoms explicitly mentioned in that recital should be considered only as examples, given that, in principle, any right or freedom based on Union law (EU) or the law of a Member State can be considered under the limitation provided for in Article 15.4 of the GDPR, including the right to the protection of personal data (Article 8 of the Charter of Fundamental Rights of the EU). Regarding the right to obtain a copy, the right to the protection of others' data is a typical case in which the limitation must be evaluated.²¹

18 CJEU, judgment of May 4, 2023, Österreichische Datenschutzbehörde and CRIF GmbH, C-487/21, ECLI:EU:C:2023:369, § 45. It is the Dispute Chamber that emphasizes this.

19 CJEU, judgment of January 12, 2023, Österreichische Post AG, C-154/12, § 38; CJEU, judgment of July 17, 2014, YS et al., C-141/12 and C-372/12, § 44; CJEU, judgment of December 20, 2017, Nowak, C-434/16, § 57.

20 CJEU, judgment of October 26, 2023, FT, C-307/22, § 35-38. "38. It must be noted that neither the wording of Article 12, paragraph 5, of the GDPR nor that of Article 15, paragraphs 1 and 3, of this regulation conditions the provision, free of charge, of a first copy of personal data on the invocation, by these persons, of a reason aimed at justifying their requests. These provisions therefore do not give the data controller the possibility to require reasons for the access request made by the data subject." The CJEU further adds that the reasons for which the person wishes to access the data concerning them are not limited to those set out in Recital 63 of the GDPR.

21 European Data Protection Board (EDPB), Guidelines 01/2022 of March 28, 2023 on the rights of data subjects — Right of access: https://www.edpb.europa.eu/system/files/2024-04/edpb_guidelines_202201_data_subject_rights_access_v2_fr.pdf point 170.

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43. "Others" means any other person or entity other than the data subject exercising their right of access. Consequently, the rights and freedoms of the data controller or the processor themselves (such as the preservation of the confidentiality of trade secrets and intellectual property) may be taken into consideration. The European legislator did not opt for the term "third party," which, as defined in Article 4.10 of the GDPR, would have excluded the data controller and the processor.

44. Article 15.4 of the GDPR is, like any exception, subject to restrictive interpretation and application. Recital 63, already cited, specifies in this regard that "however, these considerations should not lead to the refusal of any communication of information to the data subject." The wording of Article 15.4 is also clear in that the exception it provides does not apply to the information related to processing referred to in Article 15.1 a) to h) and 15.2 of the GDPR, but only to the right to obtain a copy of the personal data being processed as established in Article 15.3 of the GDPR.

45. Finally, when interpreting Article 15.4 of the GDPR, particular caution is required not to unjustifiably broaden the limitations allowed by Article 23 of the GDPR, especially in Article 23.1 i), which also retains the limitation reason derived from "the infringement of the rights and freedoms of others." These limitations are indeed only permitted, notably regarding the right of access, under strict conditions, as the Contentious Chamber will outline below. Although it may appear to be formulated in absolute terms, Article 15.4 of the GDPR nonetheless requires a proportional approach. A balancing with other fundamental rights must, in accordance with the principle of proportionality, be conducted on a case-by-case basis and in concreto by the data controller who intends to invoke it (Article 52.1 of the Charter of Fundamental Rights of the EU) and who must demonstrate that all conditions for its application are met in the specific case.

46. As previously mentioned, Article 23 of the GDPR also allows for derogation from the right of access in that it permits the national legislator (Belgian in this case) to limit the scope of the obligations and rights provided for in Articles 12 to 22 of the GDPR, subject to certain conditions being met. The provisions of Article 23 of the GDPR aim to create a balance between these rights and other legitimate interests in a society.

22 Idem, point 171. Article 4.10 of the GDPR indeed reads as follows: "'third party' means a natural or legal person, a public authority, a service, or an agency other than the data subject, the data controller, the processor, and the persons who, under the direct authority of the data controller or the processor, are authorized to process personal data."

23 Article 23.1 i) of the GDPR provides that "1. The law of the Union or the law of the Member State to which the data controller or the processor is subject may, by legislative measures, limit the scope of the obligations and rights provided for in Articles 12 to 22 and Article 34, as well as Article 5, to the extent that the provisions of the law in question correspond to the rights and obligations provided for in Articles 12 to 22, when such limitation respects the essence of the freedoms and fundamental rights and constitutes a necessary and proportionate measure in a democratic society to guarantee: (...) i) the protection of the data subject or the rights and freedoms of others."

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democratic listed in Article 23.1. To this end, limitations on the right of access under Article 15 of the GDPR are possible, provided that a certain number of cumulative conditions are met.

47.

Thus, the Contentious Chamber recalls that the limitation must be provided for by a legislative measure and that this measure must be binding on the data controller invoking it. This measure does not necessarily have to be a law, an order, or a decree adopted by a parliament, but can be any legal norm that is sufficiently clear and precise, the application of which is predictable for any concerned person. In particular, national law must use clear terms to sufficiently indicate to all under what circumstances and under what conditions it empowers the data controller(s) to resort to such limitations. The limitation must pursue one of the reasons listed in the exhaustive list of Article 23.1 of the GDPR. Furthermore, the limitation must respect the essence of fundamental rights and freedoms and consist of a necessary and proportionate measure in a democratic society (proportionality test). Finally, in accordance with Article 23.2 of the GDPR, this legal norm must contain specific provisions relating to certain characteristics of the processing in question, in order to give substance to the requirements of Article 23.1 of the GDPR.

48. The Contentious Chamber specifies that, in principle, the data controller is therefore authorized to rely on a domestic (Belgian) legal norm that would provide for an exception to the right of access if and only if said norm meets the conditions set by Article 23 of the GDPR and the controller is in a position to invoke it. In doing so,

24 Recital 41 of the GDPR.

25 Namely: a) national security; b) national defense; c) public security; d) the prevention and detection of criminal offenses, as well as investigations and prosecutions in this regard or the enforcement of criminal sanctions, including protection against threats to public security and the prevention of such threats; e) other important objectives of general public interest of the Union or a Member State, including a significant economic or financial interest of the Union or a Member State, including in the areas of monetary, budgetary, and fiscal policy, public health, and social security; f) the protection of the independence of the judiciary and judicial proceedings; g) the prevention and detection of breaches of professional ethics in regulated professions, as well as investigations and prosecutions in this regard; h) a mission of control, inspection, or regulation related, even occasionally, to the exercise of public authority, in the cases referred to in points a) to e) and g); i) the protection of the data subject or the rights and freedoms of others; j) the enforcement of civil law claims.

26 The GDPR does not define what is meant by "the essence of a right or freedom," and the Court of Justice of the European Union (CJEU) has also not established a clear definition of this notion. See, for example, CJEU, October 6, 2015, judgment in *Schrems v. Data Protection Commissioner*, where the CJEU notably ruled that a U.S. regulation allowing U.S. authorities to gain generalized access to the content of electronic communications of concerned individuals is contrary to the essential content of the fundamental right to respect for private life guaranteed by Article 7 of the Charter of Fundamental Rights (§94). Based on the guidelines of the EDPB dedicated to Article 23 of the GDPR, the Contentious Chamber believes that the essence of a right is reached when the scope of its protection is so reduced that its existence is called into question for the concerned individuals. See notably M. BRKAN, "The Concept of Essence of Fundamental Rights in the EU Legal Order: Peeling the Onion to its Core," *European Constitutional Law Review*, 2018, p. 363.

27 Article 23, §2: In particular, any legislative measure referred to in paragraph 1 contains specific provisions relating, at least where appropriate: a) to the purposes of the processing or categories of processing; b) to the categories of personal data; c) to the extent of the limitations introduced; d) to the safeguards intended to prevent abuses or unlawful access or transfer; e) to the identification of the data controller or categories of data controllers; f) to the retention periods and applicable safeguards, taking into account the nature, scope, and purposes of the processing or categories of processing; g) to the risks to the rights and freedoms of the data subjects; and h) to the right of data subjects to be informed of the limitation, unless this risks undermining the purpose of the limitation.

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The Contentious Chamber emphasizes that the data controller does not violate the respect owed to the hierarchy of norms (invoked by the complainant – *supra* point 22). Article 23 of the GDPR indeed allows the national legislator to provide, under certain conditions, limitations to Article 15 of the GDPR in particular.

49. Finally, in accordance with the principle of the primacy of EU law and the case law of the CJEU in this regard, the "duty to disapply national legislation that is contrary to Union law falls not only on national courts but also on all state bodies, including administrative authorities, tasked with applying, within the framework of their respective competences, Union law"²⁸. In other words, it follows that the Contentious Chamber must disapply a norm adopted in execution of Article 23 of the GDPR that does not meet the conditions set by it (and as recalled above).

In this case

50. In light of the above reminders, the Contentious Chamber will examine in the following paragraphs whether the refusal made on April 14, 2022, by the defendant to the complainant's request for access due to the confidentiality obligation to which it claims to be legally bound under Article XVI. 25, 12° of the Economic Law Code was in accordance with Article 15 of the GDPR (title II.1.), which applies in conjunction with Article 12 of the GDPR (title II.2).

51.

It is undisputed that Article XVI. 25, 12° of the Economic Law Code invoked by the defendant is applicable to it as a qualified entity. For reference, it provides that "the entity (i.e., the defendant here) guarantees the confidentiality of the information communicated by the parties"²⁹. This article expresses one of the conditions that the defendant must meet to be qualified as such. It also reflects an obligation imposed on it.

52.

In light of the facts reported to it, the Contentious Chamber is of the opinion that the defendant could legitimately question whether, given its obligation to ensure the confidentiality of the information it received from the complainant's insurance company (Article XVI. 25, 12° of the Economic Law Code), it was authorized, under the GDPR, to communicate to the complainant the documents he requested. The requested documents concerning "the exchanges between itself and this insurance company," the Contentious Chamber understands that these documents are

²⁸ CJEU, judgment of December 4, 2018, case C-378/17, ECLI:EU:C:2018:979, paragraph 38. It is the Contentious Chamber that emphasizes.

²⁹ It is the Contentious Chamber that emphasizes.

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had been provided by the insurance company during the mediation it conducted. They could also include reactions from her in her capacity as Ombudsman, which would reveal information communicated by the insurance company. The complainant intended to use them outside the mediation process, before the justice of the peace of his municipality of [...] on the one hand, and possibly before the APD on the other hand. The Contentious Chamber also notes that it appears from the case files that the insurance company refrained from communicating these documents directly to the complainant, and it therefore seems that the latter did not have access to them during the mediation (this access during mediation does not appear to be certain in any case).

Regarding Article 23 of the GDPR

53. It is the responsibility of the Contentious Chamber to determine whether Article XVI. 25, 12° of the Economic Law Code invoked by the defendant complies with the conditions of Article 23 of the GDPR and could, for this reason, be opposed to the complainant to refuse his request for access.

54. The Contentious Chamber is indeed of the opinion that it is in light of Article 23 of the GDPR that the relevance of the exception invoked by the defendant in support of Article XVI. 25, 12° of the Economic Law Code should be assessed. Indeed, the defendant invokes an exception provided by a legal obligation to which it claims to be subject.

55. The Contentious Chamber notes that Article XVI. 25, 12° of the Economic Law Code states the obligation for the defendant to "ensure the confidentiality of the information communicated by the parties." In this case, this obligation is provided by a Belgian law in the formal sense of the term, namely by Article XVI. 25, 12° of the Economic Law Code introduced by the Law of April 4, 2014, on insurance. It is also imposed on the defendant, who must comply with it. As already indicated, it sets forth a qualitative requirement to be recognized as an "independent and impartial qualified entity" and

constitutes an obligation for the defendant. This obligation is also expressly circumscribed and restricted in its scope to "information provided by the parties to an entity such as the defendant in the exercise of the missions that have been legally entrusted to it" (Article 322 of the Law of April 4, 2014).

30 See the statement of facts which reproduces the terms used in his complaint form (point 13): "It is urgent because it is for a request at the justice of the peace of my municipality." as well as the content of the email of January 5, 2022, to the defendant (point 8).

31 The writings of the complainant also suggested that he intended to use these documents in the context of his complaint filed against his insurance company before the APD (DOS-201X-XXXXX). This is evident from the statement of facts and the case files (see point 14 - email of April 12, 2022: "this file is related to the APD file DOS-201X-XXXXX," in particular).

32 See in this regard the statement of facts and the correspondence between the complainant, his insurance company, and the defendant, from which it appears that the complainant was not receiving responses from his insurance company (points 6 to 9).

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56. Nevertheless, the Disciplinary Chamber notes that the text of Article XVI.25.12° does not expressly state that this obligation would entail a limitation on a party's right of access to personal data concerning them, nor, a fortiori, the scope of the limitation on this right of access. The question that arises, therefore, is whether, in the absence of a textually provided limitation, it is sufficiently foreseeable for the concerned individual that they will not have, within the meaning of the GDPR, access to the personal data concerning them that the defendant processes in circumstances such as those of the case at hand.

57. The preparatory works invoked by the defendant justify confidentiality in the following manner (DOC 53, 3360/001, p. 20), specifying that what is stated therein (see below) regarding the Consumer Mediation Service - competent by default in the absence of a sectoral ombudsman and to which the same obligation of confidentiality applies - also applies to any qualified entity such as the defendant: "To achieve a good extrajudicial settlement of such a dispute, it is important that the parties demonstrate an open spirit, as they are expected to communicate a number of pieces of information, sometimes even of a personal nature. The parties must therefore be assured that this data will only be used within the framework of seeking an extrajudicial settlement and will have no other purpose, for example, a criminal investigation. The Consumer Mediation Service must absolutely adhere to a confidential handling of requests for extrajudicial settlements and their content. The same rule applies to other qualified entities, so that the guarantee of the confidentiality of the information provided is considered a qualitative requirement."

58. It follows that the communication of information provided by the parties to the defendant outside the context of mediation is excluded, and it is the defendant's responsibility to ensure the confidentiality of this "information" in this sense. In other words, this obligation aims to protect the confidentiality of the documents and other information communicated by the parties (which, as already mentioned, may contain personal data concerning either party) as well as the mediation process as a means of extrajudicial conflict resolution.

59. In light of the consequences in terms of the right of access within the meaning of Article 15 of the GDPR and any potential limitations on it, a useful reading of the provision could therefore...

33 <https://www.lachambre.be/FLWB/PDF/53/3360/53K3360001.pdf>

34 It is the Disciplinary Chamber that emphasizes this.

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to encompass the prohibition of communication of the said information both to third parties and to the parties themselves when such communication would compromise the confidentiality of the said information with respect to third parties in the mediation process. In the specific case at hand, communication to the complainant who states a desire to share the information exchanged during the mediation outside of it would be contrary to the obligation of confidentiality to which the defendant is bound, the latter being aware of the complainant's statements. In this regard, and as far as necessary, the Litigation Chamber recalls the judgment C-307/22 already cited, from which it follows that certainly, the person concerned is not required to invoke one or another reason (that the data controller would

assess) in support of their access request. However, if the reason invoked by the applicant were to lead to the application of an exception to the right of access, whether under Article 15.4 of the GDPR or Article 23 of the GDPR, the refusal of the right of access may then be justified.

60. The Litigation Chamber is nonetheless of the opinion that notwithstanding the objective of the text of Article XVI.25, 12° of the Economic Law Code and what could be deduced from it, the absence of a specific mention of the limitation on the right of access of the person concerned is problematic in light of the requirement for predictability of the norm (and here of the limitation in particular), especially considering the essential nature of the right of access as recalled above (point 39).

61.

It is indeed as fundamental as it is absolutely necessary to know without any ambiguity whether the guarantee of confidentiality prevents the communication of this information to third parties involved exclusively in exchanges with the defendant or whether it also prevents any communication by the Ombudsman to the person concerned themselves when data relating to them is transmitted by the other party to the mediation or when this data originates from the defendant themselves. Indeed, as recalled, Article 15 of the GDPR allows the person concerned access to data that relates to them, even in the case of indirect collection (i.e., the collection of data not directly from the person concerned but from a third party). The prohibition on communicating personal data concerning them to third parties is a distinct case from that of access by the person concerned to their own data, and is not covered by Article 15 of the GDPR. The specificity of the situation in the case at hand, which, due to the objective of preserving confidentiality certainly with respect to third parties, would impose a limit on communication to the person concerned themselves, demands all the more clarity and predictability.

62.

The Litigation Chamber is aware that the defendant also invokes Article 11 of its rules of procedure, which for its part, and in its version of May 2019 as communicated in the context of this file and applicable at the time of the facts

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denounced³⁵, explicitly mentions that confidentiality must be guaranteed with respect to third parties³⁶. However, this procedural regulation does not have the value of a norm, especially if it intends to specify the scope of application of a principle as essential to mediation as confidentiality. Furthermore, it does not provide any additional clarification since, as has been specified, there are cases where the confidentiality to be guaranteed with respect to third parties would oppose the communication of data from one of the parties to the mediation as soon as, as invoked in this case, the defendant could not ignore that the claimant (i.e., the complainant in this case) states that they wish to share the requested documents with third parties to the mediation.

63. The Disciplinary Chamber also notes that Article XVI. 25, 11° of the Economic Law Code states that "the procedure offers each party the opportunity to express their point of view and to be informed of the arguments and facts presented." While this provision uses the terms "to be informed of the arguments and facts" without expressly providing for the communication as such of the information or documents that would contain them, Article 10 of the defendant's procedural regulation (from the version produced dated May 2019) provides, under the same reservations that have just been expressed regarding its normative value in relation to its Article 11, that "The Insurance Ombudsman ensures that the parties have a reasonable time to be informed of all documents, arguments, and facts presented by the other party as well as to respond to them." The same Article 10 adds that "as soon as a request for dispute resolution is declared admissible, the Insurance Ombudsman requests all concerned parties to no longer communicate directly with each other in the relevant file but to communicate the documents, arguments, and facts presented to the Ombudsman who ensures their transmission to the other party. (...)".

64. In other words, it seems that the parties have the right to all documents exchanged within the framework of the mediation, whether through the defendant or at least to their content. Should we deduce, contrary to the previous analysis, that consequently, the obligation of confidentiality that the defendant must guarantee only concerns communication to third parties and not to the parties themselves or to one of them? The Disciplinary Chamber is of the opinion that the articulation of these latter provisions of the defendant's procedural regulation and Article XVI, 25, 11° of the Economic Law

Code indicates that

35 The Disciplinary Chamber notes that as of the date of this decision, the defendant's website publishes a revised version of its procedural regulation dated May 2024: https://www.ombudsman-insurance.be/images/uploads/dossier_general/R%C3%A8glement_de_proc%C3%A9dure_definitif_juin_2024.pdf

36 The Disciplinary Chamber notes that in the version of the procedural regulation available on the Ombudsman's website as of the date of this decision (version dated May 2024), the mention "with respect to third parties" has been omitted in Article 11. The Disciplinary Chamber questions the scope of this modification if in its previous version, the obligation already covered the communication of exchanged information with respect to the concerned person as seems to result from the Ombudsman's position in the present file.

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The obligation under Article XVI. 25, 12° of the Economic Law Code further complicates the understanding of the scope of this article and its potential limits on the right of access of the data subject as enshrined in Article 15 of the GDPR.

65. It follows from the above that the consequences of the obligation for the defendant to ensure confidentiality as provided in Article XVI. 25, 12° of the Economic Law Code on the right of access of the data subject (Article 15 of the GDPR) are neither explicitly formulated by the text of said article nor do they arise clearly and precisely, even by reference to other texts. The Contentious Chamber concludes that Article XVI. 25, 12° of the Economic Law Code lacks the predictability required by Article 23 of the GDPR. The Contentious Chamber further notes that Article XVI. 25, 12° of the Economic Law Code is invoked by the defendant in relation to the entirety of the plaintiff's request, whereas this provision only pertains to the "information communicated by the parties." What then of the personal data concerning the plaintiff processed by the defendant contained in the correspondence exchanged between the insurance company and the defendant, which would not constitute "information communicated by the parties" (i.e., by the plaintiff's insurance company) within the meaning of said Article XVI. 25, 12° of the Economic Law Code? In this regard, the defendant argues solely that the GDPR cannot result in granting access to a mediator's personal notes. This argument also does not meet the conditions of Article 23 of the GDPR.

66. Regarding the other conditions for the application of Article 23, the Contentious Chamber is of the opinion that, since the standard invoked by the defendant does not meet the requirement of predictability, it is not strictly necessary for it to examine compliance with the other conditions, as these are cumulative.

67. The Contentious Chamber is nonetheless of the opinion that, in general, a limitation of the right of access for reasons related to the guarantee of confidentiality of data exchanges during mediation could be considered under the ground of "protection of the data subject or the rights and freedoms of others" listed in Article 23.1.i of the GDPR, provided that all conditions of Article 23 of the GDPR are met. The Contentious Chamber, however, believes it is unable to determine whether, and therefore to conclude, that the limitation on the right of access respects its essence, given that this limitation is not expressed and uncertainties related to the scope of the consequences of the confidentiality obligation on the right of access of data subjects remain. The same applies to the assessment of the proportionality of the limitation.

37 Regarding Article 1728 of the Judicial Code cited by the defendant, the Contentious Chamber notes that it applies to mediators accredited by the Federal Mediation Commission and not to independent and impartial qualified entities within the meaning of the Economic Law Code.

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limitation. Without a clearly stated limitation, it is not possible for the Contentious Chamber to conclude that the interference with the right is strictly necessary to achieve the objective pursued by said limitation.³⁸ Finally, the Contentious Chamber notes that it still results from its findings on the lack of clear scope of the consequences of the confidentiality obligation on the right of access of the concerned individual that, in particular, the extent of the limitation is not defined (Article 23.2.c) of the GDPR). The rights concerned (here presumably the right of access) and the extent to which they are

limited are not specified by law. These clarifications are all the more important as, as recalled above, the right of access has several facets (see *supra* points 36 and 37). Thus, one may question whether the communication of the "information" as referred to in Article XVI. 25, 12° of the Economic Law Code also hinders the communication of certain elements of Article 15.1-2 of the GDPR.

68. In support of the above, the Contentious Chamber concludes that the conditions for invoking Article 23 of the GDPR were not met in this case. Consequently, it decides, thus leaving Article XVI. 25, 12° of the Economic Law Code inapplicable, that the defendant could not derive an admissible reason from this provision to refuse to provide the complainant with a copy of the documents exchanged between herself and the complainant's insurance company that he requested³⁹. The Contentious Chamber will further conclude that similarly, the fact that the information required under Article 15.1-2 of the GDPR was not provided cannot be excused by invoking Article XVI. 25, 12° of the Economic Law Code (points 82 and following).

Regarding Article 15.4. of the GDPR

69. Without prejudice to the grievances raised above against Article XVI. 25, 12° of the Economic Law Code regarding its compliance with the requirements of Article 23 of the GDPR, the Contentious Chamber examines in the following paragraphs whether, in light of the specific circumstances of the case, the defendant's refusal could in this instance rely on Article 15.4. of the GDPR.

70. The considerations expressed by the Contentious Chamber above (point 43) regarding what is meant by "others" apply here as well; the reason drawn from "the protection of the rights and freedoms of others" may include both those of the defendant in relation to the mission legally entrusted to her and those of the complainant's insurance company.

71. Regarding the "protection of the rights and freedoms" of the defendant, the Contentious Chamber notes that regardless of the question of whether Article XVI. 25, 12° of the

38 CJEU, judgment of April 8, 2014, *Digital Rights Ireland*, C-293/12, C-594/12, § 149-150.

39 For a decision in which the Contentious Chamber adopts a different viewpoint regarding another legislation, see the decision 155/2023 of the Contentious Chamber which concludes, in light of the specific provisions of the examined legislation, that it meets the requirements of Article 23 of the GDPR.

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The Code of Economic Law meets, *quod non*, the requirements of Article 23 of the GDPR; this article nonetheless states that the defendant is required to ensure the confidentiality of the information provided to it by the parties in the exercise of its competencies and that, in this respect, this same information cannot leave the sphere of mediation to be used in other proceedings (see above points 57-58).

72. The obligation imposed on the defendant is, as has already been mentioned, a condition of its recognition as an impartial and independent entity within the meaning of Book XVI of the Code of Economic Law.

73. This obligation is part of a law aimed at regulating the extrajudicial resolution of disputes between consumers and, for example, insurance companies. More generally, such an extrajudicial resolution mechanism aligns with the general interest objectives pursued by the aforementioned European Directive 2013/11/EU, which are a high level of consumer protection and the effectiveness of consumer dispute resolutions in connection with their right to a fair trial. Mediation is thus favored and can only take place in strict compliance with the confidentiality of exchanges with respect to third parties at the very least, a confidentiality that the parties must respect and that the entity (here the defendant) must guarantee. It is the very nature of the mediation process that is at stake here.

Therefore, it concerns the preservation of the defendant's role, the effectiveness of its interventions, including the respect of its commitments towards the parties, as well as the trust of these parties in it.

74. Indeed, confidentiality also benefits the party being challenged in the mediation process, namely, in this case, the insurance company of the complainant. The confidentiality inherent in the exchanges that occur in the mediation process risks being irreparably compromised if these exchanges are disclosed outside of the mediation procedure. If they were to be used in other proceedings in disregard of the commitments made by the parties, they could, however, in principle, be excluded if necessary.

75. As the Contentious Chamber has recalled, Article 15.4 of the GDPR is to be interpreted restrictively and cannot be used to circumvent the requirements of Article 23 of the GDPR. The Contentious Chamber must be particularly attentive to this, especially when the reason invoked under Article 23 of the GDPR is, as in this case, that of “the

40 See Article 1 of the directive: The purpose of this directive is to contribute to the proper functioning of the internal market by ensuring a high level of consumer protection, by ensuring that consumers can voluntarily lodge complaints against professionals with entities applying independent, impartial, transparent, effective, rapid, and fair extrajudicial dispute resolution procedures. Recital 15 specifies that “The dissemination of ADR (read extrajudicial dispute resolution) procedures may also prove important in Member States that have a significant backlog of cases pending before the courts, which prevents Union citizens from exercising their right to a fair trial within a reasonable time.”

41 See Recital 29 of the directive: Confidentiality and privacy should be respected at all times during the ADR procedure. Member States should be encouraged to protect the confidentiality of ADR procedures in any subsequent proceedings, whether judicial or civil or commercial arbitration.

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"protection of the data subject or the rights and freedoms of others," which is also the basis retained in Article 15.4 of the GDPR.

76.

Thus, and as has been recalled, the general concern that compliance with the access request could infringe upon the rights and freedoms of others is not sufficient to invoke Article 15.4 of the GDPR. The data controller, in this case the defendant, must be able to demonstrate that, in the specific situation, the "rights or freedoms of others" would be affected.

77.

The defendant indeed relies on the fact that the complainant clearly indicates that their intention is to use the requested documents in the context of legal proceedings (peace judge) or even in the context of judicial proceedings AND administrative proceedings (before the APD – DOS-201X-XXXXX), that is to say, outside the mediation process. She emphasizes - as has already been mentioned - that if she were to disclose the requested documents to the complainant with full knowledge of the latter's intentions, this would lead her to violate her own obligation to ensure the confidentiality of the information that has been transmitted to her by the insurance company.

78.

While the Contentious Chamber acknowledges that the requested disclosure may not be free of risk to the aforementioned rights and freedoms, whether they are her own or those of the complainant's insurance company, it can only note that the defendant does not demonstrate how, in this case and in concrete terms, the disclosure of the requested documents would infringe upon her rights and/or those of the complainant's insurance company.

79.

Regarding the rights and freedoms of the defendant, this lack of demonstration is due - independently of the conclusion that Article XVI. 25, 12° of the Economic Law Code does not meet the requirements of Article 23 of the GDPR concerning the limitations it imposes in terms of the complainant's right of access under Article 15 of the GDPR - particularly to the fact that the defendant does not demonstrate the exact scope of her obligation to ensure confidentiality, the consequences and limitations of this obligation, and how this obligation and the rights and freedoms it entails balance against the complainant's right of access and should take precedence over it.

80. Regarding the rights and freedoms of the insurance company, the defendant also does not demonstrate that, in this case, the disclosure of the documents requested by the complainant (of which the Contentious Chamber does not have) would, in concrete terms, infringe upon the rights and freedoms of the insurance company. What exactly are these rights of the insurance company? How would they be compromised and to what extent? How would this compromise take precedence over the complainant's right of access (noting that documents...

42 EDPB, Guidelines on the right of access already cited, point 172.

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used outside the mediation procedure would, in principle, be excluded from the debates before the jurisdiction to which they would be invoked) and is there an alternative way to avoid a simple refusal? To be able to invoke Article 15.4 of the GDPR, a data controller such as the defendant must therefore:

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Specifically identify the rights and freedoms jeopardized by the exercise by the data subject (i.e., the complainant in this case) of their right of access as formulated in their complaint;

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Identify how these rights and freedoms are concretely endangered, what specific harm would be caused to them if the request for access by the data subject/complainant were to be granted;

-

Demonstrate that it would be disproportionate to grant the right of access to the data subject/complainant in light of this harm and that there would be no way for the defendant to reconcile the rights at stake, for example, by implementing appropriate measures to mitigate the risk to the identified rights and freedoms of others.

81.

In conclusion, in the absence of the defendant demonstrating that it was and remains authorized to rely on Article 15.4 of the GDPR to refuse the complainant access (in the form of copies of the exchanged correspondence as requested) to the data concerning them, the Chamber concludes that the defendant has violated Article 15.3 of the GDPR, in conjunction with Article 12.4 of the GDPR (see below Title II.2).

Regarding Article 15.1-2

82.

As recalled in point 44, the exception in Article 15.4 of the GDPR does not apply in any case to the information related to processing referred to in Article 15.1 a) to h) and 15.2 of the GDPR but only to the right to obtain a copy of the personal data subject to processing as provided in Article 15.3 of the GDPR.

83. The Contentious Chamber having decided to leave Article XVI.25, 12° of the Code of Economic Law inapplicable (see above point 68), is of the opinion that regardless of its conclusion on the violation of Article 15.3 of the GDPR, it was also incumbent upon the defendant to provide the complainant with the information elements of Article 15.1-2 of the GDPR relevant to

43 See in this regard points 172 and following of the Guidelines of the EDPS regarding the right of access already cited, including this:

“When the assessment under Article 15, paragraph 4, of the GDPR proves that compliance with the request has negative effects on the rights and freedoms of other participants (step 1), the interests of all participants must be balanced, taking into account the specific circumstances of the case and, in particular, the likelihood and severity of the risks present in the communication of the data. The data controller should strive to reconcile conflicting rights (step 2), for example, by implementing appropriate measures to mitigate the risk to the rights and freedoms of others.”

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regarding the personal data concerning him contained in the copy of the exchanges he requested.

84. The Contentious Chamber notes that these elements were not communicated by the defendant in its response of April 14, 2022. It did inform the complainant that it was processing identification data concerning him, communicated the results obtained in processed files, and indicated that it could provide him with the exchanges that occurred between it and him (point 16). However, this response does not meet the requirements of paragraphs 1 and 2 of Article 15 of the GDPR applied to the data contained in the copy of the exchanges requested by the complainant.

85. In conclusion, the Contentious Chamber decides that the defendant has committed a violation of Article 15.1-2 of the GDPR, in conjunction with Article 12.4 of the GDPR (see below title II.2).

Regarding the argument based on Article 14.5. d) of the GDPR

86. Without prejudice to the above, the Contentious Chamber adds that Article 14.5. d) of the GDPR invoked by the defendant in its reply (point 23) has no impact on a possible exception to the right of

access. This article indeed provides for an exemption from informing the data subject "when and to the extent that the personal data must remain confidential under a professional secrecy obligation regulated by Union law or the law of Member States, including a legal obligation of professional secrecy." Article 14 of the GDPR is dedicated to the right to information in the case of indirect collection of personal data by the data controller and not to the right of access (Article 15 of the GDPR) in question here. The right to information aims to inform data subjects about the processing activities of the data controller by detailing a series of elements listed in paragraphs 1 and 2 of Article 14 such as purposes, recipients, retention periods, the rights of data subjects (with their limitations, if applicable), etc.⁴⁴. This information may, for example, take the form of a privacy policy. The right of access, for its part, as recalled, aims to allow the data subject to obtain (1) a response to the question of whether data concerning them is being processed, (2) if so, which data, for what purpose(s), etc., as well as (3) to obtain a copy. Consequently, the exception to the information requirement of Article 14.5. d) of the GDPR does not apply in the context of a request for access as in this case (Article 15 of the GDPR).

87. If the defendant were to consider relying on Article 14.5 d) of the GDPR (for data collected through indirect means) as a basis for exemption from information, the Contentious Chamber reminds that, like any exception, Article 14.5 d) of the GDPR is to be interpreted restrictively. Its wording further specifies that the exception does not necessarily apply to all elements listed in paragraphs 1 and 2 but only "when and to the extent that" the obligation of secrecy prevents the information of each element. It is therefore incumbent upon the defendant to examine and demonstrate, in accordance with the principle of accountability (Articles 5.2 and 24 of the GDPR), that the exemption it intends to rely on applies to all the elements of information listed in both paragraphs 1 and 2 of Article 14 of the GDPR.

88. Regarding the collection of personal data directly from the parties, Article 13 of the GDPR applies to the defendant in both its paragraphs 1 and 2 as well. The only possible exception is provided for in Article 13.4 of the GDPR, which states that these paragraphs do not apply when, and to the extent that, the data subject already has this information.

II.2. Regarding compliance with the provisions of Article 12 of the GDPR concerning the defendant's response to the complainant

II.2.1. Position of the parties

Position of the complainant

89. The complainant denounces the lack of response received to his request within the one-month period prescribed by the GDPR. His requests dated from November 2021 and January 2022 - accompanied by reminders in February 2022 - the response received from the defendant on April 14, 2022, nearly 5 months after his initial request, is therefore, in his view, late.

Position of the defendant

90. Regarding the delay in responding to the complainant, the defendant explains, as mentioned in point 6 of the statement of facts, that it initially adopted a wait-and-see attitude since the complainant's request seemed to address his insurance company first and could find a solution between them without immediate recourse to its mediation competence.

II.2.2. Assessment of the Contentious Chamber

Reminder of principles

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91.

Regarding the exercise of the right of access enshrined in Article 15 of the GDPR, Article 12 of the GDPR concerning the modalities for exercising their rights by data subjects is applicable in the case of a request for access. In light of the present case, the Contentious Chamber specifically recalls that Article 12.4 requires the data controller who does not intend to comply with a request to notify the data subject of the reasons for their refusal within one month, along with information that an appeal against this refusal can be lodged with the data protection supervisory authority (Article 77 of the GDPR) as well as the possibility of bringing a judicial appeal (Article 79 of the GDPR).⁴⁵

92.

The Contentious Chamber particularly emphasizes the importance of the reasoning behind this refusal. Article 12.4 must be read in conjunction with Article 12.2 of the GDPR: to facilitate the exercise of the rights of data subjects, a data controller must clearly and simply state the reason for their

refusal. If this refusal is based on a legal provision, the relevant legal provision must be communicated to the data subject. Indeed, it would be difficult for a data subject to assess the relevance of the refusal made against them and to effectively exercise their rights of appeal before a data protection authority or before courts if the reasoning for such a refusal is based on an incorrect or unmentioned legal basis. In this case

93. In its response dated April 14, 2022, the defendant does provide some clear information and states as the reason for its refusal that "regarding the exchanges, we cannot provide them as they are confidential." While the confidentiality of the exchanges is thus put forward as a reason for refusal, the Contentious Chamber notes that the mention of the legal provision that the defendant subsequently invoked in the context of these proceedings (namely Article XVI. 25, 12° of the Economic Law Code) is nonetheless absent (regardless of the relevance of this provision, which was also dismissed by the Contentious Chamber in this case).

94. The Contentious Chamber also notes that the defendant fails to inform the complainant of the existence of their right to appeal to the DPA (Article 77 of the GDPR) as well as to the courts (Article 79 of the GDPR).

95. Furthermore, the defendant responds late to the complainant's request. While the Contentious Chamber is not insensitive to the argument that a waiting position from the defendant might have been justified during the initial exchanges in November 2021 that were more directly addressed to the complainant's insurance company (see the defendant's waiting response of November 25, 2021 – point 6), it remains that the request made by the complainant in their email of January 5, 2022, to which the defendant was a recipient (alongside the complainant's insurance company) left no room for doubt (point 8). Indeed, the complainant addresses the defendant directly (notably to its DPO) and formulates their request to their attention, further emphasizing it ("Could you also provide me with copies of the correspondence exchanged, containing my personal data, with this company from 2019 to 2021⁴⁶"). By only responding on April 14, 2022, more than 3 months later, the defendant has significantly exceeded the one-month period within which it was required to respond to the complainant, even if negatively.

96. In support of the above, the Contentious Chamber finds that the defendant did not comply with the requirements of Article 12.4 of the GDPR in the response it provided to the complainant's access request (whether in regard to paragraphs 1-2 or 3 of Article 15 of the GDPR).

97.

The Contentious Chamber adds that this response was only provided after the notification of the filing of a complaint with the DPA, which further aggravates the defendant's failure in its eyes.

98. It is indeed important that the exercise of the rights of data subjects (and even more so the right of access, a cornerstone of the exercise of these rights as recalled in point 39) occurs between the parties and not through the intermediary of the DPA. Without blaming the complainants, the Contentious Chamber particularly regrets cases of complaints filed due to the passive or late attitude of data controllers. Such negligence on their part severely undermines the effectiveness of the rights of data subjects (even in the case of a justified negative response) and, by extension, the effectiveness of the DPA's action in general and the Contentious Chamber in particular. The latter cannot shake off the feeling that complaints motivated by the absence or exceeding of the response time could be avoided if there were timely responses to the data subject. This point of attention is without prejudice to the competence of the Contentious Chamber to assess, once the response is provided, the validity of any potential reason for refusal if the complainant has reasons to doubt it.

III. Corrective Measures and Sanctions

99. Under Article 100 LCA, the Contentious Chamber has the power to:

1° dismiss the complaint without further action;

46 As already mentioned, the request is extended to 2022 in the complainant's letter of 2022.

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2° order the dismissal;

3° pronounce a suspension of the ruling;

4° propose a settlement;

- 5° issue warnings or reprimands;
- 6° order compliance with the requests of the concerned party to exercise these rights;
- 7° order that the interested party be informed of the security issue;
- 8° order the freezing, limitation, or temporary or permanent prohibition of processing;
- 9° order the compliance of the processing;
- 10° order the rectification, restriction, or deletion of data and the notification of such to the recipients of the data;
- 11° order the withdrawal of the accreditation of certification bodies;
- 12° impose penalties;
- 13° impose administrative fines;
- 14° order the suspension of cross-border data flows to another State or an international organization;
- 15° forward the file to the Public Prosecutor of Brussels, who will inform it of the follow-up given to the file;
- 16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

100. Regarding the breach identified in points 81 and 96 of Article 15.3 in conjunction with Article 12.4 of the GDPR, the Litigation Chamber issues a reprimand to the defendant. The Litigation Chamber accompanies this reprimand with an order to comply, within one month of the notification of this decision, with the exercise of the complainant's right of access in execution of Article 15.3 of the GDPR based on Article 100, 6° of the LCA, unless the defendant demonstrates that it can, in concreto and taking into account the reminders of this decision regarding how to apply Article 15.4 of the GDPR (see point 80), rely on said Article 15.4 of the GDPR in conjunction with Article 12.4 of the GDPR to refuse, in whole or in part, this access.

101. Regarding the breach identified in points 85 and 96 of Article 15.1-2 of the GDPR in conjunction with Article 12.4 of the GDPR, the Litigation Chamber also decides to issue a reprimand to the defendant accompanied by an order to comply, within one month of the notification of this decision, with the complainant's right of access in execution

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Such an appeal may be introduced by means of an interlocutory request which must contain the information listed in Article 1034ter of the Judicial Code⁴⁷. The interlocutory request must be filed with the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code⁴⁸, or via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial Code).

(se)Hielke HIJMANS

President of the Litigation Chamber

47 The request must include under penalty of nullity:

- 1° The indication of the day, month, and year;
- 2° The name, first name, and address of the applicant, as well as, if applicable, their qualifications and national register number or business number;
- 3° The name, first name, address, and, if applicable, the status of the person to be summoned;
- 4° The subject and a brief summary of the grounds for the request;
- 5° The indication of the judge who is seized of the request;

The signature of the applicant or their lawyer.

48 The request, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the jurisdiction or filed with the registry.